

UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON,
Plaintiff,

vs.

Case No.: 3:25cv1447/MCR/ZCB

AMENTUM GOVERNMENT
SERVICES PARENT
HOLDINGS LLC, et al.,
Defendants.

_____/

ORDER

Before the Court is Plaintiff's motion for sanctions against Defendant Amentum Government Services Parent Holdings LLC ("Amentum") and its counsel. (Docs. 29, 30). Amentum and its counsel oppose the motion. (Doc. 34). For the reasons below, the motion is denied.

I. Plaintiff's Motion for Sanctions

Plaintiff seeks sanctions against Amentum and its counsel under Fed. R. Civ. P. 11 and 37 as well as the Court's inherent authority. Plaintiff argues that Amentum's counsel has engaged in "cross-case interference" in a separate federal action Plaintiff is pursuing in the District of South Carolina. (Doc. 29 at 1). Plaintiff claims that in the

South Carolina action, Amentum's counsel has shared confidential information, provided opposing counsel with Plaintiff's pleadings in this case, and influenced a deposition. (*Id.* at 1-2). Plaintiff further claims that Amentum's counsel engaged in settlement negotiations despite knowing Plaintiff was about to be terminated from her employment and has interfered with Plaintiff's attempts to obtain employment records. (*Id.* at 2). Plaintiff claims she has been prejudiced by these alleged actions. (*Id.* at 4). For relief, Plaintiff seeks to strike Amentum's answer, for the Court enter an adverse inference of retaliatory termination, to compel communications, to prohibit further "cross-case communication," and monetary sanctions.

Amentum argues in opposition that Rules 11 and 37 are inapplicable here. (Doc. 34 at 3-4). Amentum argues that the Court's inherent authority does not provide a basis for sanctions because Amentum nor its counsel has engaged in sanctionable conduct. (*Id.* at 4-7). Amentum states that Plaintiff's motion is frivolous and seeks attorney's fees for having to respond to it. (*Id.* at 7-8). The Court agrees with Amentum that Plaintiff's motion lacks any merit.

First, Fed. R. Civ. P. 11 is not applicable to Plaintiff's motion. "Federal Rule of Civil Procedure 11 authorizes a district court to impose

sanctions against an attorney who files frivolous *pleadings or motions*.” *Gulisano v. Burlington, Inc.*, 34 F.4th 935, 941 (11th Cir. 2022) (emphasis added and citing Fed. R. Civ. P. 11(b), (c)). Thus, Rule 11 “only applies to conduct associated with papers signed and filed with the court.” *Jones v. Int’l Riding Helmets, Ltd.*, 145 F.R.D. 120, 122 (N.D. Ga. 1992). Here, the only conduct discussed by Plaintiff relates to Amentum’s and its counsel’s alleged actions outside of Court. Plaintiff identifies no allegedly improper motion, pleading, or other paper filed with the Court, and thus Rule 11 does not allow sanctions to be imposed.¹ *See In re Kunstler*, 914 F.2d 505, 525 (4th Cir. 1990) (“Rule 11 must be accorded its plain meaning. The text of the Rule clearly pertains only to a ‘pleading, motion, or other paper.’ Rule 11 does not encompass all conduct within judicial proceedings, and it clearly does not reach conduct outside of the judicial process.”) (cleaned up).

Second, Fed. R. Civ. P. 37 does not authorize sanctions in this case. Rule 37 “permits a district court to impose sanctions for a party’s ‘failure

¹ The only paper referenced in the motion is Amentum’s answer, which Plaintiff seeks to strike. (Doc. 29 at 4). The Court would note, however, that Amentum (nor any other Defendant) has filed an answer. Instead, Defendants have moved to dismiss this case and only did so after the motion for sanctions was filed. (Doc. 33).

to make disclosures or to cooperate in discovery.” *Consumer Fin. Prot. Bureau v. Brown*, 69 F.4th 1321, 1328 n.10 (11th Cir. 2023) (quoting Fed. R. Civ. P. 37); *see also Jet Blast, Inc. v. Blue Lake Serv., LLC*, 348 F.R.D. 714, 717 (N.D. Fla. 2025) (stating that Rule 37 governs “motions to compel and other discovery motions” and “also authorizes courts to sanction a party” for violating the rule). In the present case, discovery has not been authorized or begun. Thus, Plaintiff cannot seek sanctions for Amentum failing to make disclosures or cooperate in discovery. Accordingly, Plaintiff’s motion for sanctions under Rule 37 lacks merit.

With Rules 11 and 37 inapplicable here, the Court is left with potential sanctions under the Court’s inherent authority. “Federal courts have the inherent authority to fashion an appropriate sanction for conduct which abuses the judicial process.” *Trump v. Clinton*, ---F.4th---, 2025 WL 3290254, at *8 (11th Cir. Nov. 26, 2025) (cleaned up). This authority “arises from the control necessarily vested in courts to manage their own affairs so as to achieve the orderly and expeditious disposition of cases.” *Id.* (cleaned up). “A court may exercise this power to sanction a party who has acted in bad faith, vexatiously, wantonly, or for oppressive reasons.” *Johnson v. 27th Ave. Caraf, Inc.*, 9 F.4th 1300, 1314 (11th Cir. 2021) (cleaned up).

“To establish bad faith under the inherent authority standard, a court must find subjective bad faith.” *Trump*, 2025 WL 3290254, at *9 (cleaned up). “But a blank conclusion that a party acted in bad faith is not enough; the court instead needs to make specific findings about which conduct justifies sanctions.” *J.C. Penney Corp., Inc. v. Oxford Mall, LLC*, 100 F.4th 1340, 1346 (11th Cir. 2024). Subjective bad faith means “intentional and not just reckless behavior” and can be inferred “if an attorney’s conduct is so egregious that it could only be committed in bad faith.” *Id.* “But because of their potency, a district court’s inherent powers must be exercised with restraint and discretion.” *McNair v. Johnson*, 143 F.4th 1301, 1306 (11th Cir. 2025) (cleaned up).

Plaintiff has failed to show any bad faith on the part of Amentum or its counsel. Nor does her motion show any vexatious, wanton, or oppressive behavior. As to Plaintiff’s claims of “cross-case interference,” Plaintiff fails to show that Amentum or its counsel interfered with the South Carolina action. Amentum and its counsel deny having knowledge of the South Carolina action and deny providing any documents or information to opposing counsel in that proceeding. (Doc. 34 at 4-5). Plaintiff fails to provide any evidence showing otherwise. Instead, Plaintiff merely speculates that interference *must have* occurred because

opposing counsel in the South Carolina action possessed one of Plaintiff's pleadings from the case here. But pleadings are public records that anyone—including attorneys in other lawsuits—may obtain at any time. *See Utterback v. Morris*, No. 24-12947, 2025 WL 1455900, *5 (11th Cir. May 21, 2025) (stating that public records “includ[e] filings in other judicial proceedings”). Even if Amentum or its counsel had provided Plaintiff's pleadings to opposing counsel in the South Carolina action (which they deny doing), Plaintiff fails to cite any authority that supports imposing sanctions for disclosure of a public record.

Next, the fact that opposing counsel in the South Carolina action asked certain questions about the case before this Court does not justify sanctions against Amentum or its counsel. Again, Plaintiff provides only speculation that Amentum or its counsel had any involvement or knowledge of the South Carolina action, much less that they attempted to influence its progression to prejudice Plaintiff in the case here.

Plaintiff's claims related to her termination also do not support sanctions. Amentum's counsel does not represent Plaintiff, and Plaintiff cites no authority supporting her argument that Amentum's counsel was required to inform Plaintiff of impending termination during settlement negotiations. Amentum and its counsel assert that Plaintiff was asked

to make an offer regarding settlement and that the parties failed to reach a settlement before or after Plaintiff's termination. (Doc. 34 at 5-6). The Court is hesitant to delve into the contents of settlement negotiations, and Plaintiff provides insufficient support for the imposition of sanctions based on unsuccessful settlement negotiations.²

Plaintiff's claim that Amentum's counsel intervened in Plaintiff's attempts to obtain her payroll records also does not warrant sanctions. Lastly, Plaintiff's claims of prejudice and her arguments on retaliation are without merit. Other than claiming prejudice in a conclusory manner, Plaintiff has failed to satisfactorily explain how she has been prejudiced by Amentum's or its counsel's alleged actions. Because Plaintiff has failed to justify the imposition of sanctions under Rules 11 or 37 or the Court's inherent authority, her motion for sanctions will be denied.

² See also *Tuscola Wind III, LLC v. Almer Charter Twp.*, No. 17-CV-10497, 2018 WL 1250476, at *11 (E.D. Mich. Mar. 12, 2018) ("Courts must be cautious before exercising their inherent powers to sanction parties. Where no court orders have been violated and there are several possible explanations for a party's conduct (only one of which involves bad faith), sanctions are not warranted. To the contrary, imposing sanctions in this situation would create a very real risk of chilling parties from exploring settlement. Tuscola's aspersions regarding Defendants' subjective intentions during settlement negotiations do not justify sanctions. The motion for sanctions will be denied.").

II. Amentum's Request for Attorney's Fees

Amentum seeks sanctions against Plaintiff under Rule 11(c)(2) on the basis that Plaintiff's motion was frivolous. (Doc. 34 at 7-8). "Rule 11 applies to pro se plaintiffs, but the court must take into account the plaintiff's pro se status when determining whether the filing was reasonable." *Thomas v. Evans*, 880 F.2d 1235, 1240 (11th Cir. 1989). District courts have broad discretion when deciding whether to issue sanctions under Rule 11. *Fox v. Acadia State Bank*, 937 F.2d 1566, 1569 (11th Cir. 1991).

Here, the Court agrees that Plaintiff's motion is arguably frivolous. The Court declines, however, as an exercise of its discretion to sanction Plaintiff at this time under Rule 11 given Plaintiff's *pro se* status and the infancy of this litigation. *See Hymowitz v. Supreme Lending*, No. 1:20-CV-3763-WMR, 2021 WL 2585605, at *2 (N.D. Ga. Mar. 26, 2021) ("[T]he Court recognizes that the parties were *pro se* and may have simply misunderstood the law. Hence, the Court refuses to award sanctions to Defendants in this case."). **But importantly, Plaintiff is warned that if she continues submitting frivolous filings in this case, those filings will lead to sanctions.** *See Fleming v. United States*, 211 F.R.D. 455, 456-57 (M.D. Fla. 2002) ("Plaintiffs are hereby put on express notice

of Rule 11 of the Federal Rules of Civil Procedure, their obligations thereunder, and the fact that they, as pro se parties, are not exempt from the Federal Rules or the Local Rules of this Court”).³

III. Conclusion

For the reasons above, it is **ORDERED** that:

1. Plaintiff’s motion for sanctions (Docs. 29, 30) is **DENIED**.
2. Amentum’s request for attorney’s fees (Doc. 34 at 7-8) is **DENIED**.

SO ORDERED. This the 30th day of December 2025.

s/ Zachary C. Bolitho

Zachary C. Bolitho

United States Magistrate Judge

³ Plaintiff is also warned that she must behave respectfully when communicating with opposing counsel in this case. (See Docs. 34-1, 34-2). Plaintiff’s failure to do so may result in sanctions. See *Maus v. Ennis*, 513 F. App’x 872, 878 (11th Cir. 2013) (“The district court did not abuse its discretion when it imposed a default judgment against Ennis as a sanction for his disrespectful conduct and his refusal to participate in discovery.”). Plaintiff’s *pro se* status does not excuse her from following the rules, and the Court will not hesitate to hold Plaintiff accountable for future violations of the rules.